Brendan Ngwa Nforbi
Plaintiff, In Propria Persona

CONFIDENTIAL SETTLEMENT COMMUNICATION
FED. R. EVID. 408; CAL. EVID. CODE §§ 1152, 1154
NOT ADMISSIBLE FOR ANY PURPOSE

September 25, 2026

VIA EMAIL (allison.kray@fedex.com)

Allison A. Kray, Esq.
Federal Express Corporation
2601 Main Street, Suite 1100
Irvine, CA 92614

Re: *Newanforbi v. Federal Express Corporation*, U.S. District Court, E.D. Cal., No. 2:26-cv-02881-DAD-SCR -- Settlement Offer

Dear Ms. Kray:

I write to propose a resolution of this action before the parties take on the cost of discovery and trial.

The Offer

Plaintiff offers to resolve this action in full for $195,000, on the terms set out below.

How the Figure Is Built

The figure rests on objective inputs: the pay rate and hours for the package-handler position, a conventional trial timeline, and the remedies California law provides when registry information is used in an employment decision.

Component	Basis	Amount
Back pay	$20.25 per hour × 20 hours per week ($405 per week), from March 19, 2025 through a trial in late summer 2027 (127 weeks)	$51,435
Front pay	Two years after trial (104 weeks) at the same rate	$42,120
Statutory civil penalty	Pen. Code § 290.46(j)(4)(A)	$25,000
Emotional distress	Anxiety, humiliation, and loss of standing from a registry-based denial of employment	$50,000
Punitive damages	Civ. Code §§ 1786.50(b), 3294	$25,000
Total		**$193,555**

What the Figure Leaves Out

- Overtime, benefits, and wage increases.
- Front pay beyond two years.
- The additional damages of up to three times actual damages that Penal Code section 290.46(j)(4)(A) allows.
- Costs of suit.

Why Now

A resolution now avoids the expense of fact and expert discovery and a multi-day trial. Without one, discovery will address FedEx's background-screening relationship with First Advantage, the adjudication criteria applied to Plaintiff's report, and FedEx's California policies on the use of registry information in hiring. A resolution also gives FedEx certainty in a case in which Plaintiff has demanded a jury.

Terms

1. Payment of $195,000 within fourteen (14) days after the settlement agreement is fully executed.
2. A release limited to the claims asserted in this action and to Plaintiff's 2025 application, the related background report, and the related adverse action.
3. Confidentiality limited to the settlement amount.
4. Dismissal of this action with prejudice within five (5) business days after the funds clear, with each side bearing its own fees and costs.
5. The allocation between wage and non-wage payments to be agreed in writing.
6. Any additional terms, such as no-rehire or non-disparagement provisions, are subject to separate negotiation.

This is an offer to settle, and Plaintiff is open to discussing it. If the figure or any term does not work for your client, Plaintiff invites a counteroffer and will consider it in good faith. Plaintiff looks forward to your client's response.

Any settlement is subject to a written agreement signed by both parties, and Plaintiff may withdraw or modify this offer before it is accepted. This offer is made solely for purposes of compromise and is not an admission or a waiver of any claim, right, or remedy.

Sincerely,

Brendan Ngwa Nforbi
Plaintiff, In Propria Persona